



CHAPTER li

An Act to enlarge the powers of the mayor aldermen and burgesses of the county borough of Barnsley in relation to Locke Park to increase the tolls leviable by the Corporation in connection with their markets undertaking and to make further and better provision with respect to the improvement health and local government of the borough and the finances of the Corporation and for other purposes. [30th July 1949.]

WHEREAS the borough of Barnsley (hereinafter referred to as "the borough") is a county borough under the government of the mayor aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas by a deed of gift made the twenty-fourth day of April eighteen hundred and sixty-one Phoebe Locke established a public playground or place of recreation in the borough:

And whereas on the death of John Edward Errington (trustee under the said deed of gift) the Barnsley Local Board of Health (predecessors of the Corporation) were on the seventh day of January eighteen hundred and sixty-three appointed trustees of the said public playground or place of recreation (known as Locke Park) and the same and the trusts belonging thereto were conveyed and assigned to the said local board of health:

And whereas by a deed of gift made the twentieth day of August eighteen hundred and seventy-four between Frederick William Thomas Vernon Wentworth of the first part Thomas Frederick Charles Vernon Wentworth of the second part and the Corporation of the third part there was granted to the Corporation a plot of land adjoining the public playground or place of

recreation above referred to to be added to and form part of Locke Park as a recreation ground for the benefit of the inhabitants of Barnsley and the neighbourhood:

And whereas by an indenture made the ninth day of October eighteen hundred and seventy-four between Sarah McCreery of the one part and the Corporation of the other part the said Sarah McCreery granted and conveyed as an absolute gift to the Corporation lands to the extent of more than twenty acres being bounded on the north or north-west by Locke Park and to be added to and form part thereof:

And whereas the said indenture dated the ninth day of October eighteen hundred and seventy-four contained a covenant by the Corporation that they should not at any time thereafter make any entrance or entrances to the lands thereby conveyed other than those marked on a plan drawn in the margin of the said indenture:

And whereas by mistake no entrance to the said lands was marked on the plan drawn in the margin of the said indenture:

And whereas by a deed of covenant endorsed on the lastly recited indenture and dated the twenty-fourth day of November eighteen hundred and seventy-four the Corporation further covenanted with the said Sarah McCreery that except an entrance for carts and horses marked on a plan drawn on the said deed of covenant no entrance or entrances to the lands conveyed by the said indenture dated the ninth day of October eighteen hundred and seventy-four should be made between certain points referred to in the said deed of covenant as being marked on the plan drawn thereon and further that the said entrance for carts and horses should not at any time be used or appropriated as and for a public entrance to the said lands so conveyed by the said indenture dated the ninth day of October eighteen hundred and seventy-four:

And whereas in consequence of such covenants the Corporation are debarred from making any public entrance to Locke Park on the south and east sides and part of the north side thereof and owing to the growth of the borough eastwards of Locke Park it would be of public local advantage if the Corporation were relieved of the restrictions imposed by the said deed of covenant:

And whereas the Corporation are the owners of a markets undertaking and it is expedient to authorise the Corporation to increase the tolls leviable by them in connection with that undertaking and with the weighing houses slaughter-houses and cold air stores of the Corporation provided in connection therewith:

And whereas it is expedient that the powers of the Corporation in relation to the improvement local government and public health of the borough and other matters should be enlarged as by this Act provided:

And whereas it is expedient to make further provision with respect to the finances of the Corporation:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5.
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

1. This Act may be cited as the Barnsley Corporation Act Short title. 1949.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

Part I.—Preliminary.

Part II.—Locke Park.

Part III.—Markets &c.

Part IV.—Streets buildings sewers and drains.

Part V.—Infectious disease and sanitary matters.

Part VI.—Food.

Part VII.—Sale of coke wood fuel &c.

Part VIII.—Weights and measures.

Part IX.—Finance.

Part X.—Miscellaneous.

Part XI.—General.

3. Subject to the provisions of this Act and unless the sub-Interpretation. ject or context otherwise requires the several words and expressions to which by the Acts wholly or partially incorporated with this Act or by the Public Health Act 1936 meanings are 26 Geo. 5. & assigned have in this Act in relation to the relative subject 1 Edw. 8. c. 49 matter the same respective meanings And in this Act—

“the borough” means the county borough of Barnsley;

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—cont.

“ the Corporation ” means the mayor aldermen and bur-
gesses of the borough ;

“ the council ” means the council of the borough ;

“ the town clerk ” “ the surveyor ” “ the medical officer ”
“ the chief constable ” and “ the sanitary inspector ”
mean respectively the town clerk the surveyor the medi-
cal officer of health the chief constable and any
sanitary inspector of the borough ;

“ local planning authority ” has the same meaning as in
the Town and Country Planning Act 1947 ;

“ public service vehicle ” has the meaning assigned thereto
by section 121 of the Road Traffic Act 1930 ;

“ the commission ” means the British Transport Commis-
sion and any reference to the commission in relation
to any functions of the commission which are for the
time being delegated to an executive in pursuance
of section 5 of the Transport Act 1947 shall be con-
strued as a reference to that executive ;

“ coal industry activities ” has the meaning assigned to it
by section 63 of the Coal Industry Nationalisation Act
1946 ;

“ Sunday school ” means any school in which children are
assembled for instruction on a Sunday or specially for
religious instruction whether on a Sunday or not ;

“ daily penalty ” means a penalty for each day on which
an offence is continued after conviction therefor ;

“ food ” has the meaning assigned to it by the Food and
Drugs Act 1938 ;

“ weighing machine ” means a weighing machine available
for the use of the public for the purpose of ascertaining
the weight of any vehicle or the loading thereof ;

“ statutory borrowing power ” includes a power of borrow-
ing money conferred on the Corporation by or under
any enactment except paragraph (a) of subsection (1)
of section 215 of the Act of 1933 ;

“ statutory security ” means any security in which trustees are
for the time being authorised by law to invest trust
moneys and any mortgage bond debenture debenture
stock stock or other security created by a local authority
as defined by section 34 of the Local Loans Act 1875
but does not include annuities rentcharges securities
transferable by delivery or any securities of the
Corporation ;

“ authorised security ” means any mortgage stock bond or
other security which the Corporation are for the time

being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money ;

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—cont.

“ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;

“ the Minister ” means the Minister of Health ;

“ the Act of 1933 ” means the Local Government Act 1933 ;

“ the Act of 1936 ” means the Public Health Act 1936 ;

“ enactment ” includes this Act and any general or local Act Order byelaw or regulation for the time being in force within the borough.

PART II

LOCKE PARK

4.—(1) Notwithstanding the covenants which are contained in Locke Park. an indenture made the ninth day of October eighteen hundred and seventy-four between Sarah McCreery of the one part and the Corporation of the other part and in an indenture made the twenty-fourth day of November eighteen hundred and seventy-four between the Corporation of the one part and the said Sarah McCreery of the other part it shall be lawful for the Corporation to make and maintain such entrances and exits to and from Locke Park as they may from time to time think fit.

(2) In this section “ Locke Park ” means the lands in the borough known as Locke Park containing forty-six and a quarter acres or thereabouts and bounded on the north in part by Park Road and in part by the southern boundary of land and premises fronting on Park Road and Keresforth Hall Road on the south in part by Racecommon Lane and in part by the northern boundary of the land and premises known as Beech Grove on the east in part by West View and in part by allotments forming part of the Highstone Estate and on the west by the eastern boundary of the said land fronting on Park Road by Keresforth Hall Road and by the eastern boundary of Beech Grove aforesaid and premises known as The Hawthorns.

PART III

MARKETS &C.

5.—(1) On and from the first day of September nineteen Tolls in hundred and forty-nine the Corporation may demand and take Corporation in respect of any cattle market slaughter-house or cold air store markets. under the management of the Corporation tolls not exceeding the tolls set out in the First Schedule to this Act.

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—cont.

(2) The Corporation may with the sanction of the Secretary of State from time to time alter or add to the tolls mentioned in the First Schedule to this Act and any such altered tolls shall as from the date on which they come into operation be substituted for the corresponding tolls payable under the said First Schedule.

Exclusive use
of market-
place.

6. The Corporation may permit any market-house market-place or any land used for the purposes of any market of the Corporation to be used on days other than recognised market days for agricultural shows exhibitions of livestock and the sale of livestock on such terms as the Corporation think fit and they may make byelaws with respect to such use and as to the conduct of persons resorting thereto but nothing in this section shall operate to prevent the holding of any market.

PART IV

STREETS BUILDINGS SEWERS AND DRAINS

Stopping up
and diversion
of highways.

7.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation made with the consent of the local planning authority for the district in which the highway is situate that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates.

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

(a) has at least twenty-eight days before the date on which the application is made been served either personally or by registered post on the owners or reputed owners and the occupiers of all land abutting on the highway and (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport ; and

(b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application ;

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—
42 & 43 Vict. c. 49.
23 & 24 Geo. 5. c. 38.

(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order ;

(b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal ;

(c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a re-hearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

(7) Provided that—

(i) nothing in this section shall authorise the diversion over any land of any highway unless the written consent of the local planning authority for the district in which that land is situate and of every person having a legal interest in that land is produced to and deposited with the court ; and

(ii) an order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace.

PART IV
—cont.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway the clerk of the court shall forthwith transmit the order to the clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be repairable by the person (if any) by whom the original highway was repairable:

Provided that the owner of any land shall not be required to maintain so much of a highway as is diverted from his land.

(10) Any application or order under this section—

(a) may include two or more highways which are connected with each other;

(b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle way or footway.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

Shelters &c. for
passengers.

8.—(1) The Corporation may erect and maintain on any street in the borough at suitable stopping places on the routes of public service vehicles or on lands belonging to them shelters and other accommodation for intending passengers on such vehicles.

(2) The Corporation shall not in pursuance of this section erect any shelter or other accommodation—

(i) so as to cause interference with or to render less convenient the access to or exit from any station wharf or depot belonging to any railway canal or inland navigation undertakers; or

(ii) in any street or road belonging to or repairable by any railway canal or inland navigation undertakers; or

(iii) on any bridge carrying any street or road over any railway canal or inland navigation or the approaches thereto;

except in each case with the previous consent in writing of the undertakers concerned which consent shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be referred to and determined by the Minister of Transport.

(3) The Corporation shall not in pursuance of this section erect any shelter or other accommodation on any part of any trunk road without the consent of the Minister of Transport:

Provided that if in any case the said Minister withholds his consent and the Corporation give notice to him that they are aggrieved the matter shall be referred to arbitration.

(4) The Corporation shall not in pursuance of this section erect or maintain any shelter or other accommodation opposite to or in the immediate vicinity of any entrance to or exit from any premises used as a cinematograph theatre.

(5) The Corporation may make byelaws for the regulation use and management of any such shelter and accommodation.

(6) The Corporation may enter into and fulfil agreements with any person for and in relation to the erection maintenance and use of any such shelters and other accommodation and as to the contributions to be made by any such person towards the cost of the provision and maintenance thereof.

(7) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Secretary of State.

9.—(1) It shall be lawful for the Corporation—

As to barriers
&c. in streets.

(a) at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports illuminations or on emergencies to cause barricades to be erected along or across any of the streets of the borough;

(b) at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports or illuminations to cause flagpoles and pylons to be erected in any of such streets for the purpose of displaying decorations:

and to continue the same for such time as may be deemed reasonably necessary and any person who wilfully removes any such barricade flagpole pylon or decorations or any part thereof shall be liable to a penalty not exceeding forty shillings.

(2) For the purpose of the erection of such barricades flagpoles and pylons the Corporation may construct or place and maintain in and under the surface of the streets of the borough such sockets or slots as may in their opinion be necessary or convenient.

(3) The powers of this section shall not be exercised in such a manner as to cause obstruction to or interference with the access to or exit from any station wharf or depot of the commission except with their consent.

10.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or

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—cont.

paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from such premises the Corporation may either—

- (a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe ; or
- (b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

(3) If the Corporation allow the use of the footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) subject to any reasonable condition other than the strengthening or adaptation of the footway any person who knowingly uses or permits to be used the footway as a crossing as aforesaid in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(4) Notwithstanding the provisions of section 18 (Crossing for cattle &c. over footways) of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

(6) Before requiring the construction of any carriage-crossing across the footway of a trunk road or allowing the use of such a footway subject to any condition the Corporation shall obtain the consent of the Minister of Transport.

11.—(1) In so far as the Corporation may indicate by notices conspicuously placed on or in proximity to any grass or other area which is situate in or forms part of or adjoins any street in the borough and is mown or maintained by the Corporation in an ornamental condition that such area is not intended for use by foot passengers horses cattle or vehicles any person who shall wilfully walk or otherwise proceed or lead ride or drive any horse cattle or vehicle on over or across any such area shall be liable to a penalty not exceeding one pound.

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—cont.
Prohibition of
persons
vehicles &c. on
grass margins.

(2) Nothing contained in this section shall affect the duty of the Corporation under section 58 (Provision of footpaths and grass or other margins) of the Road Traffic Act 1930.

12.—(1) The owner of every house fronting adjoining or abutting on a highway which is not repairable by the inhabitants at large shall maintain the footpath on the frontage of such house and the approach to such house from the highway (exclusive of so much of such footpath or approach as passes through the garden of or through any land within the curtilage of such house) in accordance with the reasonable requirements of the Corporation.

Maintenance
of footpaths
&c.

(2) Any person who contravenes the provisions of this section after the expiration of a period of twenty-eight days (or such longer period as may be allowed by the Corporation) from the receipt of notice from the Corporation shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

13.—(1) In any street not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves defray the cost of the repairs out of the general rate fund:

Urgent repairs
of private
streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds per one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the borough relating to private street works or private improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

14. If—

- (i) any owner of land fronting adjoining or abutting on a street within the meaning of the Private Street Works Act 1892 and situate in the borough conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and

As to evasion
by owners of
private street
works
expenses.
55 & 56 Vict.
c. 57.

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—cont.

(ii) any expenses of works executed by the Corporation under the Private Street Works Act 1892 in or in relation to that street are apportioned on such part or portion of that land ; and

(iii) the Corporation are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land ; and

(iv) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Private Street Works Act 1892 ;

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner in the same manner as expenses of the execution of works under the Private Street Works Act 1892 may be recovered as though he has not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

As to pavement
lights.

15.—(1) It shall be lawful for the owner or occupier of any property with the consent of the Corporation to construct in any pavement forming part of any street in the borough any means (in this section referred to as “ pavement lights ”) for the admission of light or air through such pavement to any room or premises situate under or adjoining the same.

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

Power to place
fences near
school
entrances &c.

38 & 39 Vict.
c. 55.

16. For the purpose of preventing danger to pedestrians from traffic the Corporation may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools Sunday schools public baths public parks public halls recreation grounds playing fields alley-ways and passageways exercise the like powers of placing fences rails and posts on the sides of any footways or carriage-ways of such roads as under section 149 (Vesting of streets &c. in urban authority) of the Public Health Act 1875 are exerciseable

by them as respects roads so repairable and the Corporation may from time to time repair renew maintain or remove any fences rails or posts so placed by them.

PART IV
—cont.

17. The Corporation may lay out with grass margins or plant with trees or lay out as gardens any part of any street repairable by the inhabitants at large and may erect guards or fences for the protection of such grass margins trees or gardens and the Corporation may maintain in good order any grass margins trees gardens guards and fences in any such street and alter or renew the same and may add to the carriageway or footway of any such street any part of such grass margins parts planted with trees or parts laid out as gardens as aforesaid and may alter or re-arrange the parts of any street laid out as a carriageway or footway respectively:

Power to lay
out grass
margins &c.
in streets.

Provided that—

- (1) nothing in this section contained shall empower the Corporation to prevent the occupier of or any person residing in any premises in or abutting on any such street having full and free right and liberty of access to and from such premises from and to the metalled or paved portion of such street ;
- (2) for the purposes of section 7 (Provision as to work which involves alteration in telegraphic line) of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by Act of Parliament and the Corporation shall be deemed to be the undertakers.

41 & 42 Vict.
c. 76.

18. The Corporation when carrying out any private street works in any street may with the consent in writing of a majority in number and rateable value of the owners of houses and land in such street cause trees or shrubs to be planted and grass margins to be laid out in such street and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the private street works in any such street:

Planting of
trees in private
streets.

Provided that no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises adjacent to the said street:

Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers

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—cont.

conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

As to erection
of retaining
walls.

19.—(1) Before any person shall erect on any land within the borough a retaining wall of greater height than six feet abutting on or adjacent to or within twelve feet of any street he shall submit to the Corporation plans sections and specifications thereof and no such wall shall be erected except in accordance with such plans sections and specifications as may be approved by the Corporation.

(2) Any person who shall erect a retaining wall contrary to the provisions of this section or any owner who after erection shall after reasonable notice in writing from the Corporation requiring him so to do fail to put such wall in proper repair shall without prejudice to any other right or remedy of the Corporation be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(3) The provisions of this section shall not extend or apply to any land belonging to or which may hereafter be acquired by the commission.

Demolition of
buildings.

20.—(1) As from the commencement of this section no person shall demolish or take down any building or part thereof within the borough without first notifying the Corporation of his intention so to do and without complying with such reasonable terms and conditions as the Corporation think fit including terms and conditions requiring—

(a) the shoring up of adjacent buildings ; and

(b) the removal of any material or rubbish resulting from the demolition or taking down and the clearance of the site ;

to the satisfaction of the Corporation within a reasonable time to be prescribed by the Corporation :

Provided that this section shall not apply to the demolition or taking down of an internal part of a building if such demolition or taking down is incidental to an internal alteration of the building the use of which it is intended to continue.

(2) Where notice is given to the Corporation under subsection (1) of this section and such notice is accompanied by particulars of such building or part thereof and of the proposals in regard thereto the Corporation shall be deemed to have approved the proposals unconditionally unless within six weeks from the receipt thereof or within such longer period as the applicant may agree in writing to allow they give notice to him that they have decided to the contrary.

(3) If any term or condition imposed under this section is not complied with within the time therein prescribed the Corporation may themselves enter upon the building and the site thereof and carry out the work and may sell or dispose of any material or rubbish found on the site:

Provided that if the Corporation sell any material or rubbish found on the site they shall pay the proceeds to the person to whom the material or rubbish belonged after deducting the amount of any expenses recoverable by them from him.

(4) All expenses incurred by the Corporation under subsection (3) of this section may be recovered by the Corporation from the owner of the site of the demolished building.

(5) Any person who contravenes the provisions of this section or of any term or condition imposed under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds.

(6) Nothing in this section shall apply in relation to any building belonging to any statutory undertakers and held by them for the purposes of their undertaking:

Provided that the exemption conferred by this subsection shall not extend to houses or to buildings last used before demolition as offices or showrooms other than buildings so used which belong to the Yorkshire Electricity Board or which form part of a railway station.

(7) Nothing in this section shall apply in relation to any building belonging to the National Coal Board and held by them for the purposes of coal industry activities:

Provided that the exemption conferred by this subsection shall not extend to houses or to buildings last used before demolition as dwelling-houses or offices.

(8) This section shall not apply to any poultry-house greenhouse coal-shed or cycle-shed or other similar structure.

21.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 (Dangerous or dilapidated buildings and structures) of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the borough and the following provisions of this section shall have effect in lieu thereof. Ruinous and dilapidated buildings and neglected sites.

(2) Where a building or part of a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof within a reasonable time specified in the notice—

(a) to execute such works of repair or restoration; or

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—cont.

(b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition ;

as may be necessary for remedying the cause of complaint.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building or part of a building in the borough is lying on the site of the building or that part thereof and by reason thereof the site is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site within a reasonable time specified in the notice to take such steps for removing the rubbish or material as may be necessary for remedying the cause of complaint.

(4) If any person fails to comply with a notice served on him under this section the Corporation may themselves—

(a) in the case of a notice served under subsection (2) execute such works of repair or restoration as they think necessary or if they think fit demolish the building or any part thereof and remove any rubbish resulting from or exposed by the demolition ; or

(b) in the case of a notice served under subsection (3) remove the rubbish or material ;

and in either case recover from that person the expenses reasonably incurred by them in so doing.

(5) In this section the expression “ building ” includes a structure.

(6) Nothing in this section shall apply in relation to any building or part of a building or any site of a building belonging to the National Coal Board and held by them for the purposes of coal industry activities :

Provided that the exemption conferred by this subsection shall not extend to the site of any building last used before demolition or collapse as a dwelling-house or office.

Means of
access to
buildings.

22.—(1) At any time within one month after the deposit of the plans of any new building intended or adapted for use as a dwelling-house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Corporation may by notice require the provision either before the building is erected or before it is sold let or occupied (as the Corporation shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets.

(2) If it appears to the Corporation to be necessary that the means of communication to be provided under this section shall be in the form of a street the Corporation may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Corporation to any person such person shall not begin to erect or proceed with the erection of any building to which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Corporation has been complied with or until security has been given to the satisfaction of the Corporation that the notice will be complied with.

(4) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

23.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway. Window blinds &c.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Corporation the safety and convenience of the public.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

24. Where it appears to the Corporation that any building or structure in the borough or any part of such building or structure is in such a condition as to be dangerous to persons in such building or structure or any adjoining premises or using any street upon which such building or structure abuts the Corporation may employ and pay watchmen and do all such other acts as may be necessary to watch such building or structure and may recover the expenses reasonably incurred by them in so doing from the owner of the building or structure and such expenses shall until recovered be a charge on such building or structure and the site thereof and on all estates and interests therein: Recovery of expenses of watching dangerous and dilapidated buildings.

Provided that the Corporation shall forthwith give to the owner of any building or structure notice that they propose to employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such building or structure.

PART IV
—cont.Byelaws as to
houses let in
lodgings.26 Geo. 5. &
1 Edw. 8. c. 51.

25. The powers of the Corporation of making byelaws under section 6 (Byelaws as to working-class houses) of the Housing Act 1936 for the registration and inspection of houses let in lodgings shall extend so as to enable them to make such byelaws with respect to houses let in lodgings whether such houses are or are not occupied or are or are not of a type suitable for occupation by persons of the working class :

Provided that for the purposes of any byelaws made under the said section as extended by this section where any house has been let in lodgings without the consent in writing of the owner of such house the person so letting such house shall be deemed to be the owner.

Apportionment
to frontagers of
expenses of
sewer
constructed
under public
highway.

26.—(1) Where the Corporation resolve to construct a sewer in a street or part of a street repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Corporation increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the provisions of the section of this Act of which the marginal note is “Provisions applicable to the last two preceding sections” the expenses incurred by the Corporation in constructing the sewer so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published twice in a local newspaper circulating in the borough but shall become operative as from the date of the second of such publications. Copies of the newspapers containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

Apportionment
to frontagers of
expenses of
construction of
sewer before
land became
a street.

27.—(1) Where the Corporation have incurred expenses in constructing after the passing of this Act a length of sewer in or under land within the borough and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section of this Act the expenses so incurred so far as they do not exceed the sum authorised by that section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in on or over

which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer or to such part thereof as was constructed in on or over such land as aforesaid.

PART IV
—cont.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

28.—(1) The sum apportionable under either of the last two preceding sections of this Act shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question. Provisions applicable to the last two preceding sections.

(2) As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice in writing of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date when the street was laid out the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of a street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

PART IV
—cont.

For the purposes of this subsection—

- (a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date ;
- (b) any such re-erection conversion or extension of a building as is mentioned in the Second Schedule to this Act shall be deemed to be the erection of a new building.

15 & 16 Geo. 5.
c. 22. (5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 1925 and where part thereof has become recoverable the balance shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) Where such a resolution as is mentioned in the section of this Act of which the marginal note is “ Apportionment to frontagers of expenses of sewer constructed under public highway ” has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

(8) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Corporation or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(9) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Corporation from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

29. If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

PART IV
—cont.

As to evasion
by owners of
sewerage
expenses.

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land ; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of section 26 (Apportionment to frontagers of expenses of sewer constructed under public highway) or as the case may be of section 27 (Apportionment to frontagers of expenses of construction of sewer before land became a street) of this Act ; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the said sections of this Act ;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same extent and in the same manner as any sum apportioned under the said section 26 (Apportionment to frontagers of expenses of sewer constructed under public highway) and the said section 27 (Apportionment to frontagers of expenses of construction of sewer before land became a street) may be recovered and is charged on the premises under the said last preceding section of this Act.

30. Section 24 (Power of local authority to recover cost of maintaining certain lengths of public sewers) of the Act of 1936 shall within the borough have effect as if the following were substituted for the proviso to subsection (1) of that section :—

Recovery of
cost of
maintaining
sewers.

“ Provided that unless in the opinion of the medical officer of health or any sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall be given to the owners of any premises known by the local authority to be served by the length of sewer in question not less than seven days before the work is commenced and the local authority shall consider any representations as to the need for and reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice.”

PART IV
—cont.

Further power to examine and test drains &c. believed to be defective.

31. The powers of section 48 (Power of local authority to examine and test drains &c. believed to be defective) of the Act of 1936 may be exercised in pursuance of any general or special directions given by the Corporation in any case where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance or that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water.

Penalty for damage to surface water drains.

32. Any person who stops up damages injures or removes any surface water drain or land drain by means of which water is conveyed from lands which do not belong to that person shall unless—

(a) before stopping up damaging injuring or removing such drain he shall have provided a proper substitute to the satisfaction of the Corporation ; or

(b) he shows to the satisfaction of a court of summary jurisdiction that no material detriment is caused to such lands by stopping up damaging injuring or removing such drain ;

be liable to a penalty not exceeding five pounds.

For protection of Postmaster-General.

33.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under section 7 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of such stopping up :—

(a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be ;

(b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration

of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;

PART IV
—cont.

(c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;

(d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) In this section the expression "telegraphic line" has the same meaning as in the Telegraph Act 1878.

PART V

INFECTIOUS DISEASE AND SANITARY MATTERS

34.—(1) In this Part of this Act "notifiable disease" has the same meaning as is assigned thereto by the Act of 1936 but also includes dysentery acute poliomyelitis (including polio-encephalitis and polio-encephalo-myelitis) encephalitis lethargica whooping-cough measles acute influenzal pneumonia acute primary pneumonia and cerebro-spinal fever.

Definition of
notifiable
diseases.

(2) Section 77 (Extended meaning of "infectious disease") of the Barnsley Corporation Act 1923 is hereby repealed.

13 & 14 Geo. 5.
c. lxxxix.

35.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information to
be furnished in
case of
notifiable
disease.

PART V
—cont.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

Parents &c. to
notify certain
diseases.

36.—(1) As from the commencement of this section any parent or other person having the care or charge of a child attending at a school in the borough who is aware of or has reason to suspect the occurrence of any notifiable disease in any person residing with him or is himself suffering from such a disease and who fails forthwith to notify such occurrence to the head teacher principal or superintendent of the school shall be liable to a penalty not exceeding twenty shillings.

In any proceeding under this subsection a certificate purporting to be under the hand of the head teacher principal or superintendent of the school at which the child named in the certificate is in attendance stating that he has or has not received any notification as required under this section shall be evidence of the facts stated in such certificate unless the defendant shall require that the person by whom the certificate has been signed shall be called as a witness.

(2) For the purpose of this section the expression “school” shall include a Sunday school.

(3) Section 76 (Special provisions to prevent spread of infectious diseases) of the Barnsley Corporation Act 1923 is hereby repealed.

Restrictions on
attendance at
schools and
places of
assembly.

37.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child who to his knowledge—

- (a) is or has been attending any school or any part thereof which for the time being is closed by order of the Corporation or of the education committee of the council with the view of preventing the spread of a notifiable disease ; or
- (b) is suffering from a notifiable disease ; or
- (c) has with the view of preventing the spread of a notifiable disease been prohibited from attending school by the medical officer or school medical officer ;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) In this section the expression "day school" means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(3) Any person who offends against the provisions of this section shall be liable to a penalty not exceeding forty shillings.

(4) Section 75 (Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails) of the Barnsley Corporation Act 1923 is hereby repealed.

38.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of a notifiable disease require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirements shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) In this section the expression "day school" means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Section 74 (Power to close Sunday schools and exclude children from entertainments) of the Barnsley Corporation Act 1923 is hereby repealed.

39. If any person at the request in writing of the Corporation or the medical officer stops his employment for the purpose of preventing the spread of a notifiable disease or of a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 or of food poisoning the Corporation may make compensation to him for any loss occasioned by reason of such stoppage.

40. If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

PART V
—cont.

Provided that the medical officer shall not under the powers of this section—

- (a) enter any premises except between the hours of seven in the morning and ten in the evening ; or
- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

Prohibition on
sale of
verminous
clothing or
furniture.

41.—(1) No dealer shall sell or expose for sale or deposit in or on any premises for the purposes of sale or exposure for sale any clothing furniture mattresses bed-linen or similar articles if the same are to his knowledge infested with lice bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

(2) Any dealer offending against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(3) Where the Corporation are satisfied upon a report by the medical officer or the sanitary inspector that any clothing furniture mattresses bed-linen or articles which have been sold and are awaiting collection or delivery or are exposed for sale or deposited for the purposes of sale or exposure for sale are infested with lice bugs or other vermin they may serve notice on the dealer by whom such clothing furniture mattresses bed-linen or articles were sold or are exposed for sale or deposited for the purposes of sale or exposure for sale or if the dealer is not the occupier of the premises in which the same are awaiting collection or delivery or are so exposed or deposited on such occupier requiring such dealer or occupier as the case may be to take such steps—

- (a) to prevent other clothing furniture mattresses bed linen or similar articles from becoming so infested ; and
- (b) to cleanse disinfect and whitewash such premises as may be specified in the notice :

Provided that any such occupier shall be entitled to recover from the dealer by whom such clothing furniture mattresses bed linen or similar articles were sold or are exposed or deposited as aforesaid the reasonable expenses incurred by such occupier in complying with any such requirement :

Provided also that if any such occupier so elects and gives to the Corporation notice in writing of such election forthwith after the receipt of any such requirement as aforesaid the Corporation shall in lieu of such occupier be at liberty to take such steps as may be necessary to comply with such requirement.

(4) (a) If any dealer on whom a notice is served under subsection (3) of this section fails within seven days after the receipt of such a notice to comply with the requirements thereof he shall be liable to a penalty not exceeding five pounds.

(b) Without prejudice to the right of the Corporation to take proceedings under paragraph (a) of this section the Corporation may—

PART V
—cont.

- (i) in any such case as is referred to in that paragraph ; or
- (ii) if the occupier gives to the Corporation any such notice of election as is referred to in the second proviso to the immediately foregoing subsection of this section ;

themselves carry out such requirements and recover the expenses reasonably incurred by them in so doing from the dealer by whom such clothing furniture mattresses bed-linen or articles were sold or exposed or deposited as aforesaid.

(c) Provided that in any proceedings under this section it shall be open to the defendant to question the reasonableness of the requirements of the Corporation.

(5) In this section the expression “ dealer ” means any person who trades in clothing furniture mattresses bed-linen or similar articles for reward as part of his trade or business.

42.—(1) The contractor engaged in or upon the construction or reconstruction of any work not being a work to which section 107 (Building operations) or section 108 (Works of engineering construction) of the Factories Act 1937 applies shall where practicable and if required by the Corporation provide to the reasonable satisfaction of the Corporation and until the completion of any such construction or reconstruction maintain such water or other closets and urinals in or in connection with such work as may be sufficient for the accommodation of the workmen employed.

Sanitary
conveniences
for workmen.
1 Edw. 8. &
1 Geo. 6. c. 67.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

43.—(1) Section 81 of the Act of 1936 shall extend to empower the Corporation to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any dust spoil or refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

Byelaws as to
tipping refuse.

(2) The byelaws made under this section may contain provisions for imposing on persons offending against the byelaws penalties recoverable on summary conviction not exceeding fifty pounds for each offence and a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Act of

PART V
—cont.

1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 inclusive and section 100 of that Act shall apply accordingly.

(4) Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 (Power of court to make nuisance order if abatement notice disregarded) of the Act of 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for the continuance of his offence after conviction and to a penalty under section 95 (Penalty for contravention of nuisance order and abatement of nuisance by local authority) of the Act of 1936 (as so applied) for failing to comply with an order or contravening an order.

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by the commission for the purpose of constructing widening or maintaining any railway canal or wharf works.

(6) Nothing in this section or in any byelaw made thereunder shall extend to the tipping by the British Electricity Authority of any ash spoil or refuse or the use of any refuse tip on any land for the time being belonging to them and forming part of the site of or used in connection with a station for generating electricity.

(7) No byelaw under this section shall extend to regulate or control any dust spoil or refuse tip used for or in connection with coal industry activities.

Registration of
hairdressers
and barbers
and their
premises.

44.—(1) As from the commencement of this section every person who shall within the borough carry on the trade or business of a hairdresser or barber shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Corporation for the purpose.

(2) The Corporation may make byelaws for the purpose of securing—

(a) the cleanliness of any premises registered under this section and of the instruments towels materials and equipment used therein ; and

(b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(3) The person registered shall keep a copy of the byelaws made by the Corporation under this section displayed in the registered premises.

(4) The powers conferred by section 287 of the Act of 1936 (as applied by this Act) of entering premises for the purpose of

ascertaining whether there is or has been any contravention of any byelaw made for the purposes mentioned in paragraph (b) of subsection (2) of this section shall not be exercised by any officer except the medical officer or the sanitary inspector.

(5) (i) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on have not been registered in accordance with subsection (1) of this section or whose registration has been cancelled or suspended as hereinafter provided or who contravenes any of the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(ii) Any person who contravenes any byelaw made under this section shall be liable to a penalty not exceeding two pounds and a court of summary jurisdiction may (in lieu of or in addition to imposing a penalty) order the cancellation or suspension of the registration.

(6) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Minister.

45.—(1) If the Corporation take action under paragraph (b) of subsection (1) of section 83 (Cleansing of filthy or verminous premises) of the Act of 1936 as amended by this Act in its application to the borough and in the opinion of the Corporation it is necessary to use gas to destroy vermin on the premises they may serve notices on the occupiers of premises in the fumigation area and the risk area as defined in the Hydrogen Cyanide (Fumigation of Buildings) Regulations in force for the time being requiring all persons to vacate those premises during such period as may be specified by the Corporation: Power to require persons to vacate premises during fumigation.

Provided that the Corporation shall not require any person to vacate his premises under this section unless temporary shelter or house accommodation shall have been provided for him.

(2) Any person who contravenes a notice served under this section shall be liable to a penalty not exceeding five pounds.

(3) The Corporation may pay to any person required to vacate premises in pursuance of the powers contained in this section such reasonable allowance as they think fit towards his expenses in removing.

(4) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed to cease to apply to a house or premises by reason only of the fact that such house or premises has or have been vacated in compliance with a notice served under this section.

PART V
—cont.

Amendment of
section 71 of
Act of 1923.

46.—(1) References in section 71 (Regulation ashbins) of the Barnsley Corporation Act 1923 to ashbins shall include dustbins and references in this section to dustbins shall include ashbins.

(2) Where in pursuance of the powers in that behalf contained in section 71 of the Act of 1923 a dustbin has been provided supplied or substituted no person shall use for the deposit of any dust ashes or other refuse or permit the use for that purpose of any ashpit ashtub or other receptacle in lieu of which such dustbin has been provided supplied or substituted.

(3) The Corporation may by notice in writing addressed to the owner of any premises in connection with which they have provided or supplied or required the substitution of a dustbin require him within the period specified in the notice not being less than forty-two days to convert any ashpit or other like receptacle in lieu of which such dustbin has been or is provided supplied or substituted into an outbuilding into which the dustbin shall be placed such outbuilding being so constructed that the dustbin may be conveniently removed therefrom for the purpose of being emptied:

Provided that if the Corporation think fit they may by such a notice require the owner within the said period in lieu of converting as aforesaid to convert such ashpit or other receptacle into such other domestic outbuilding as may be determined by him and approved by the Corporation (whose approval shall not be unreasonably withheld) or in default of such determination and approval to demolish and remove such ashpit or other receptacle.

Any notice under this subsection may require the work therein specified to be executed to the reasonable satisfaction of the Corporation.

(4) Where a notice under subsection (3) of this section has been wholly or partly complied with the Corporation shall pay to the owner of the premises concerned one-half of the reasonable cost of the work executed in accordance with the notice.

(5) If any notice under subsection (3) of this section is not complied with or is not fully complied with within the period specified in the notice the Corporation may at the expiration of that period do any work required to be done by the notice which has not been done and may recover from the owner of the premises concerned one-half of the expenses incurred by them in so doing.

(6) Where the Corporation exercise their powers under subsection (5) of this section they shall so far as reasonable and except so far as the owner of the premises concerned otherwise requires utilise in executing the work any bricks and other

material made available in the course thereof and may remove from the premises and sell or use for their own purposes any materials not so used. In the event of any such removal of materials the value thereof shall be deducted from the amount otherwise recoverable from the owner under the said subsection (5).

PART V
—cont.

(7) Where the Corporation have incurred expenses under this section for the repayment of which the owner of premises is liable the Corporation may allow the owner to repay such expenses together with interest thereon at a rate not exceeding five per centum per annum by half-yearly instalments spread over a period of not more than five years and any instalment and the interest shall thereupon be recoverable by the Corporation as and when the instalment or the interest becomes due from the owner.

PART VI

FOOD

47.—(1) As from the commencement of this section the following provisions shall have effect in the borough:—

Registration of
hawkers of
food and
premises.

(a) No person other than (i) a person keeping open shop for the sale of food or (ii) a person selling or exposing for sale any goods provisions articles or things at any market or other place for which he has paid a toll stallage or rent shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation;

(b) No premises shall be used as storage accommodation for any food intended for sale (i) from a cart barrow or other vehicle or (ii) from a basket pail tray or other receptacle or (iii) from a stall in any market-place or market-house appropriated by the Corporation for the holding of markets unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding one pound.

(4) (a) The Corporation may refuse to register any person or premises under this section or (after giving one month's notice to the person registered or in whose name the premises are

PART VI
—cont.

registered) may revoke the registration of any person or premises under this section if they are satisfied (i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food or (ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid:

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before a committee of the council not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises. Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirements a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction under section 97 (As to appeals) of this Act against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

(5) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which there is reasonable cause to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle or from a stall.

(6) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(7) The provisions of this section shall not apply to any premises registered under section 14 (Registration of premises used in connection with the manufacture or sale of ice-cream or preserved food &c.) of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II (Provisions as to milk dairies and artificial cream) of that Act or under any regulations made thereunder or under any enactment thereby repealed.

(8) The provisions of this section shall not apply to any premises used as a theatre cinematograph theatre music hall or concert hall or used as a canteen or refreshment room in or in

connection with any factory or to any person in respect of the sale or offer or exposure for sale of any food in any such premises or in a factory for consumption therein by employees.

PART VI
—cont.

(9) In this section the expression "food" does not include any substance contained in containers of such materials and so closed as to exclude all risk of contamination.

48.—(1) If the medical officer certifies in writing—

(a) that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state; and

(b) that he is employed within the borough in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household; and

(c) that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health;

Power to prohibit persons in advanced state of tuberculosis from selling &c. food.

the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If any such person contravenes any such order he shall be liable to a penalty not exceeding two pounds and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

49. For the purposes and in the enforcement and execution by the Corporation of the Public Health (Meat) Regulations 1924 to 1948 in the borough the expression "meat" shall include the flesh of horses donkeys and mules which is sold or intended for sale for human consumption.

Extension of application of Public Health (Meat) Regulations 1924 to 1948.

PART VII

SALE OF COKE WOOD FUEL &C.

50. In this Part of this Act the expression "coke" includes coke and any solid fuel derived from coal or of which coal or coke is a constituent.

Definition of coke.

PART VII
—cont.Application of
Weights and
Measures Act
1889.52 & 53 Vict.
c. 21.Byelaws
relating to
wood fuel
and peat.

51. The provisions of sections 20 to 29 of the Weights and Measures Act 1889 as amended by this Act and of any byelaws made by the Corporation thereunder (which provisions and byelaws relate to the sale of coal) shall also apply to the sale of coke within the borough and those provisions (except section 28 and the byelaws thereunder) shall apply to the sale within the borough of wood fuel and peat in quantities of fourteen pounds or over.

52.—(1) The Corporation may make byelaws—

- (a) regulating the sale of wood fuel and peat in quantities of fourteen pounds or over but not exceeding two hundredweights;
- (b) requiring either generally or in specified classes of cases a weighing instrument of a form approved by the Corporation to be carried with any vehicle in which wood fuel or peat is carried for sale or delivery to a purchaser; and
- (c) prescribing the distance beyond which wood fuel or peat is not to be required to be carried for the purpose of being weighed or re-weighed in pursuance of section 27 of the Weights and Measures Act 1889 as applied by this Act.

(2) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws under this section shall be the Board of Trade.

Penalty on
fraudulent sale.

53. If any seller of coke wood fuel or peat or any person in charge of any vehicle from which coke wood fuel or peat is being sold delivered or offered or exposed for sale wilfully makes any false statement as to the weight of the coke wood fuel or peat or any part thereof or wilfully increases such weight by damping such coke wood fuel or peat or wilfully does any other act by which the purchaser may be defrauded such seller or person in charge shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on the second or any subsequent occasion to a penalty not exceeding ten pounds.

Amendment of
section 27 of
Weights and
Measures Act
1889 in its
application to
borough.

54. Proviso (a) to section 27 (Power to require weighment of coal or vehicle) of the Weights and Measures Act 1889 in its application to the borough shall be read and have effect as if in that proviso the words "two miles" were substituted for the words "half a mile".

Requirements
as to vehicles
carrying coal
coke wood fuel
or peat for sale
or delivery on
sale.

55. Every vehicle carrying coal coke wood fuel or peat for sale or for delivery on sale shall have the seller's name and place of business clearly marked and visible on such vehicle.

Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

56.—(1) Any person selling or intending to sell or exposing for sale coal coke wood fuel or peat from or on a vehicle otherwise than in sacks shall before leaving the place at which the coal coke wood fuel or peat was loaded be furnished with a ticket or note stating the gross tare and net weight of each separate load on such vehicle and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Corporation on demand and shall deliver such ticket to the purchaser or his servant before any part of the coal coke wood fuel or peat is unloaded.

As to sale of coal coke wood fuel or peat otherwise than in sacks from a vehicle.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

57.—(1) Where—

- (a) any quantity of coal coke wood fuel or peat exceeding two hundredweights is delivered by means of any vehicle to a purchaser ; or
- (b) any person sells or intends to sell or exposes or offers for sale coal coke wood fuel or peat from or on any vehicle in quantities exceeding two hundredweights ;

As to sale in sacks of coal coke wood fuel or peat in quantities exceeding two hundredweights.

and such coal coke wood fuel or peat is carried on such vehicle in sacks the net weight of coal coke wood fuel or peat in any one sack shall be equal to one of the following weights (that is to say)—

- two hundredweights ;
one hundredweight ;
one-half of a hundredweight ;
one-quarter of a hundredweight ;

and each sack shall be legibly marked so as to show the net weight of coal coke wood fuel or peat carried in such sack and a weighing instrument of a type approved by the Corporation and stamped by an inspector of weights and measures shall be carried on such vehicle.

(2) If default is made in complying with any of the requirements of subsection (1) of this section or the net weight of coal coke wood fuel or peat in any such sack is less than the weight shown thereon or stated in the ticket or note referred to in section 21 of the Weights and Measures Act 1889 the seller of the coal coke wood fuel or peat and the person responsible for loading the coal coke wood fuel or peat on such vehicle and the person in charge of such vehicle shall severally be liable to a penalty not exceeding five pounds.

(3) In addition to the matters which in accordance with the said section 21 of and in the Third Schedule to the said Act of 1889 are required to be stated on the ticket or note referred to in that section there shall in cases in which subsection (1) of

PART VII
—cont.

this section applies be stated on such ticket or note the number of sacks carried on the vehicle to which the ticket or note refers and the net weight of coal coke wood fuel or peat in each of such sacks and the said section 21 in its application to the borough shall be read and have effect accordingly.

Repeal.

58. Part VIII (Sale of coke) of the Barnsley Corporation Act 1923 shall be and is hereby repealed.

Notice of this
Part of Act.

59. The Corporation shall forthwith after the passing of this Act cause public notice to be given of the effect of this Part of this Act by advertisement in two or more newspapers circulating in the borough and otherwise in such manner as the Corporation think sufficient.

No evidence shall be required in any proceedings that the provisions of this section have been complied with.

PART VIII

WEIGHTS AND MEASURES

Registration of
weighing
machines.

60. As from the commencement of this section—

- (1) Any person who shall keep a weighing machine which shall not have been registered with the Corporation before being made available for the use of the public shall be liable to a penalty not exceeding five pounds and a daily penalty not exceeding forty shillings:
- (2) There shall be paid to the Corporation the sum of five shillings in respect of the registration of each weighing machine:
- (3) The registration of a weighing machine shall continue in force until the thirty-first day of December next after the date on which it was granted or renewed but may be from time to time renewed in the ensuing month of January without fee on the application of the owner or proprietor of such weighing machine:
- (4) The registration shall be subject to such conditions as to the siting and construction of the weighing machine as may be attached thereto by the Corporation who may refuse to register or to renew the registration of a weighing machine in respect of which there is a failure to comply with any such condition.

Registration of
keepers of
weighing
machines.

61. (1) Every person who shall keep or act as keeper of a weighing machine shall register his name and place of abode and also the premises in which such machine is kept in a book to be kept at the offices of the Corporation for the purpose.

(2) (a) The Corporation may make byelaws for regulating the manner in which weighing machines are used.

(b) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Board of Trade.

(3) Nothing in this section shall apply to a weighing machine kept by the commission for the purposes of their undertaking or to any servant of the commission acting as a keeper of any such weighing machine.

62. For the purposes of section 61 (Registration of keepers of weighing machines) of this Act the expression "weighing machine" shall mean a weighing machine used for trade within the meaning of the Weights and Measures Acts 1878 to 1936 for the purpose of ascertaining the weight of any vehicle or the loading thereof whether such machine is available for the use of the public or not.

Definition of
weighing
machine
for certain
purposes.

63. Any person keeping or who acts as a keeper of a weighing machine in the borough who shall—

Offences by
weighing
machine
keepers and
others.

(a) during ordinary business hours (which expression for the purposes of this section means from eight o'clock in the morning till six o'clock in the afternoon on week-days other than Saturday and from eight o'clock in the morning until half-past twelve in the afternoon on Saturdays) wilfully neglect on application duly to weigh any vehicle with or without loading that shall come to the machine kept by him to be weighed;

(b) not fairly weigh any such vehicle with or without loading;

(c) not deliver to the purchaser of any such loading or any person interested therein on application a ticket or account containing the true weight of such loading;

(d) give to the driver of any such vehicle a false ticket or account of the weight of such vehicle or the loading thereof;

(e) weigh any vehicle knowing that anything has been added to the loading thereof so as to increase the weight of the same or that the wheels thereof have been changed between the time of the same being weighed with its loading and the time of its coming back to be again weighed without its loading and shall not give immediate notice thereof to the person interested therein; or

(f) knowingly assist in or connive at any fraud committed or attempted concerning the weighing of any such vehicle or the loading thereof or make or connive at making any false representation of the weight of the same respectively;

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PART VIII
—cont.

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence the court may in lieu of or in addition to inflicting a fine impose any term of imprisonment not exceeding six months:

Provided that paragraphs (a) and (b) of this section shall not impose upon any railway canal or inland navigation undertakers an obligation to weigh any vehicle.

Drivers of
vehicles to take
them to
weighing
machines
on request.

64.—(1) The driver of any vehicle loaded with any goods to be sold by reference to weight of such loaded vehicle shall at the request of the buyer or seller of any such goods or the person on whose behalf the same shall be consigned or of any of their respective agents or of an inspector of weights and measures or other officer appointed for the purpose by the Corporation take such vehicle with or without the loading thereof to be weighed by any instrument stamped by an inspector of weights and measures.

(2) If such vehicle shall be required to go a greater distance from the regular course of the road by which it would otherwise be necessary to pass than half a mile the owner of such vehicle shall be paid sixpence for every half-mile that such vehicle shall be taken out of the direct road aforesaid.

(3) All charges made under subsection (2) of this section together with the tolls or fees to be paid for weighing any such vehicle shall be paid by the person requiring the same to be weighed and such charges shall if demanded be paid before the driver of such vehicle shall be obliged to go out of his way for the purpose of having the same weighed.

(4) The driver of any such vehicle who shall not upon being requested and paid such charges as aforesaid (if demanded) take such vehicle to such instrument as hereinbefore is directed or shall refuse to assist in the weighing of the same in such manner as the drivers of vehicles are used and accustomed to do shall be liable to a penalty not exceeding five pounds.

(5) For the purposes of this section the word "driver" includes the owner driver or person in charge of any vehicle.

(6) The provisions of this section shall not apply to vehicles loaded with coal coke or any solid fuel derived from coal or of which coal or coke is a constituent wood fuel or peat.

Penalties
on persons
committing
frauds.

65. Any person who in regard to the weighing of any vehicle at any weighing machine or any instrument stamped by an inspector of weights and measures—

(a) at or before the time of weighing any such vehicle shall place or knowingly leave any matter or thing in or about the same other than the proper loading thereof;

- (b) shall alter any ticket denoting the weight of such vehicle or of the loading of the same ;
- (c) shall make or use or be privy to the making or using of any false or fraudulent ticket or knowingly tender a false statement to a weighing machine keeper respecting the weight of any such vehicle or the loading thereof ;
- (d) after the weighing of such vehicle with the loading of the same shall remove any part of such loading and afterwards dispose or attempt to dispose of the residue of such loading as being the full loading denoted by such ticket ;
- (e) after such vehicle and the loading thereof shall have been so weighed shall substitute or attempt to substitute any vehicle with or without the loading thereof or shall change the wheels of the vehicle which shall have been so weighed or shall place thereon lighter wheels or make any alteration or do any other act to such vehicle before the same shall be brought back to the machine to be again weighed without the loading thereof ;
- (f) when any such vehicle shall have been weighed with the loading thereof at any such machine as aforesaid if required shall refuse to bring back the same without alteration to be again weighed at the same machine ; or
- (g) shall be guilty of any other fraudulent contrivance touching the weight of any such vehicle or of the loading thereof ;

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence the court may in lieu of or in addition to inflicting a fine impose any term of imprisonment not exceeding six months.

66.—(1) Any person who knowingly delivers or passes off or who knowingly causes or permits to be delivered or passed off with or in connection with a particular vehicle or the loading thereof any ticket which has been issued by a person keeping or acting as a keeper of a weighing machine to denote the weight of a different vehicle or loading shall be liable to a penalty not exceeding five pounds.

As to further offences in relation to weighing machines.

(2) Any person in charge of a vehicle who in regard to the weighing of such vehicle at any weighing machine refuses after being requested so to do by any person keeping or who acts as a keeper of the weighing machine to give his name and address and the names and addresses of the consignor and consignee of the load or who wilfully gives an incorrect name and address shall be liable to a penalty not exceeding five pounds.

PART VIII
—cont.Deficient
weight measure
or number.

67.—(1) Any inspector of weights and measures of the Corporation showing his authority if required may at all reasonable times—

- (a) enter any building or other place in which any article is sold or is made up or exposed for sale by weight or measure or in which articles are sold or are set apart or kept or exposed for sale in numbers or in which any article is weighed or measured or any articles are numbered with a view to their being bought or sold and require such articles to be weighed measured or numbered in his presence ; or
- (b) stop any vehicle or any person carrying or in charge of any basket or other receptacle from which articles are sold or delivered by weight or measure or in numbers or in which such articles are kept or exposed for sale or delivery and require such article or articles to be weighed measured or numbered in his presence.

(2) If the weight measure or number thereof when so ascertained does not correspond with the weight measure or number thereof which has been represented by the person who has sold or made up or kept or exposed the same for sale or delivery or who has weighed measured or numbered the same with a view to purchase or sale or delivery such inspector may seize impound and convey such article or articles to an office provided for the purpose by the Corporation.

(3) The person who has sold or delivered or made up or kept or exposed the same for sale or delivery or who has incorrectly weighed measured or numbered the same with a view to purchase or sale or delivery shall be guilty of an offence and shall be liable to a fine not exceeding five pounds and for any subsequent offence ten pounds.

(4) If any person obstructs any weighing or re-weighing by this section authorised he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

(5) (i) In any proceedings under this section in respect of an alleged deficiency of weight or measure of any pre-packed article the court shall disregard any inconsiderable variation in the weight or measure of a single article and shall have regard to the average weight or measure of a reasonable number of other articles of the same kind (if any) sold or delivered by the defendant or in his possession for the purpose of sale or delivery on the same occasion and generally to all the circumstances of the case.

(ii) In any proceedings under this section in respect of an alleged deficiency of weight or measure or number it shall be a

defence for the defendant to prove to the satisfaction of the court either—

- (a) that such deficiency was due to a bona fide mistake or accident or other causes beyond his control and that he took all reasonable precautions and exercised all due diligence to prevent the occurrence of such deficiency ; or
- (b) that the alleged deficiency was due to unavoidable evaporation or drainage and that due care and precaution had been taken to avoid such deficiency ; or
- (c) in case of a pre-packed article that he purchased the article in the wrapper or container in which he sold it from a person carrying on business at an address in the United Kingdom and that the wrapper or container had remained unopened and that he had no reason to believe that this section was being infringed.

(iii) (A) A person against whom proceedings are brought in respect of an offence against this section shall upon information duly laid by him and on giving to the prosecution not less than three clear days' notice of his intention be entitled to have any person to whose act or default he alleges that the offence was due brought before the court in the proceedings and if after the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence and if the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with he shall be acquitted of the offence.

(B) Where a defendant seeks to avail himself of the provisions of the preceding sub-paragraph—

- (a) the prosecution as well as the person whom the defendant charges with the offence shall have the right to cross-examine him if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence ;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

(iv) A prosecution in respect of an offence by a retailer under this section other than an offence of obstructing or hindering an inspector in the exercise of his duties shall not be instituted after the expiration of twenty-eight days from the time when the offence was committed nor unless within seven days after the alleged commission of the offence notice in writing of the date and nature of the alleged offence has been served on or sent by registered post to the defendant nor unless in the case

PART VIII
—cont.

of any alleged deficiency the person against whom the allegation is made has been given reasonable opportunity to check the weight measure or number of the article or articles in respect of which such allegation is made.

(v) A prosecution under this section shall not be instituted except by or on behalf of the Director of Public Prosecutions a police authority or a local authority.

(vi) For the purpose of this subsection unless the context otherwise requires—

The expression “ purchaser ” includes any person acting on behalf of the purchaser ;

The expression “ pre-packed article ” means any article which is packed or made up in advance ready for retail sale in a wrapper or container and where any article packed or made up in a wrapper or container is found on any premises where such articles are packed kept or stored for sale the article shall be deemed to be pre-packed unless the contrary is proved.

(6) The provisions of this section shall not apply to the sale of coal coke or any solid fuel derived from coal or of which coal or coke is a constituent wood fuel or peat nor to any article of food to which section 1 of the Sale of Food (Weights and Measures) Act 1926 applies.

As to personal
weighing
machines.

68.—(1) In this section the expression “ personal weighing machine ” means any weighing machine in the borough which is used or exposed for use or proposed to be used or exposed for use for the purpose of ascertaining the weight of any person ; and—

(a) for the use of which a charge is made or is proposed to be made ; or

(b) which is kept or is proposed to be kept in any premises or place to which the public have access.

(2) The Corporation may make byelaws—

(a) generally with respect to the examination on verification and to the inspection of personal weighing machines and the distinguishing marks to be affixed to personal weighing machines under this section and the circumstances and conditions in and under which such marks may be affixed or cancelled ;

(b) with respect to the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing machines ;

(c) for fixing the limits of error to be allowed on verification and inspection of any personal weighing machine ;

(d) for fixing the fees to be paid to the Corporation for the examination and marking of personal weighing machines submitted for verification or for the examination of such personal weighing machines as are found to be incorrect or defective.

(3) On and after the expiration of a period of twelve months from the coming into force of any byelaws made under subsection (2) of this section the owner or the person in charge of any personal weighing machine which is used or exposed for use and which is false or unjust beyond the limits allowed by any such byelaws as aforesaid shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(4) On and after the expiration of the said period a personal weighing machine shall not be used or exposed for use unless such machine has been examined and approved by an inspector of weights and measures of the Corporation and has been marked with a distinguishing mark by such inspector or unless it has been stamped by an inspector of weights and measures in pursuance of the Weights and Measures Acts 1878 to 1936 and such stamp has not been cancelled and on or after the expiration of the said period the owner or the person in charge of any personal weighing machine which is used or exposed for use and which is not so stamped or marked shall be liable to a penalty not exceeding two pounds or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(5) If any person forges or counterfeits or removes any such stamp or distinguishing mark as is referred to in the last preceding subsection or unlawfully stamps or marks a machine with any such stamp or distinguishing mark or knowingly exposes for use any personal weighing machine from which any such stamp or mark has been so removed or on which there is any such forged or counterfeit stamp or mark he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(6) (a) Any inspector of weights and measures of the Corporation may at all reasonable times examine and inspect any personal weighing machine which is used or exposed for use and may seize and detain any personal weighing machine which there is reasonable cause to believe may be liable to be forfeited under the provisions of this section and may for such purposes enter any premises or place where there is reason to believe that there is a personal weighing machine which he is authorised to examine and inspect.

(b) Any person who neglects or refuses to produce for such examination and inspection any such personal weighing machine

PART VIII
—cont.

in his possession or on his premises or refuses to permit any such inspector of weights and measures to examine or inspect the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be liable to a penalty not exceeding five pounds or in the case of a second or subsequent offence ten pounds.

(7) For the purpose of this section a personal weighing machine shall not be deemed to be stamped by reason of its bearing a cancelled stamp.

(8) A personal weighing machine which is liable to be forfeited under any of the foregoing provisions of this section shall not be forfeited if in the opinion of the court it is reasonably practicable having regard to cost or other relevant circumstances to restore such machine to a condition in which it may lawfully be used or exposed for use under this section.

(9) The provisions of subsections (5) (6) and (7) of this section shall come into operation on but not until the date on which any byelaws made under subsection (2) of this section shall come into force and the Corporation shall forthwith after the confirmation of any such byelaws give public notice of the provisions of this section by advertisement in a local newspaper circulating within the borough. No evidence shall be required in any proceedings that the provisions of this subsection as to public notice have been complied with.

(10) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Board of Trade.

Expenses.

69. Any expenses incurred by the Corporation in executing the provisions of this Part of this Act shall be defrayed by the Corporation as part of the expenses incurred by them in administering the Weights and Measures Acts 1878 to 1936.

Saving for
weighing
machines used
in connection
with mines.

50 & 51 Vict.
c. 58.

70. Nothing in this Part of this Act shall apply to weighing machines to which section 15 of the Coal Mines Regulation Act 1887 applies.

PART IX

FINANCE

Power to
borrow.

71.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of obtaining this Act.

The Corporation shall repay any sum so borrowed within five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed under this section for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

PART IX
—cont.

72.—(1) Sections 213 (Sinking fund) and 214 (Adjustments of sinking fund) of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of any stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

Application of
Act of 1933 to
existing
sinking funds.

(2) Section 11 (Application of Act of 1933 to existing sinking funds) of the Barnsley Corporation Act 1937 is hereby repealed.

1 Edw. 8. &
1 Geo. 6.
c. xxxviii.

73. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

As to exercise
of borrowing
powers.
8 & 9 Geo. 6.
c. 18.

74.—(1) The Corporation may (if they think fit) establish a fund to be called "the renewal and repairs fund" for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and may from time to time apply the moneys of the fund in defraying such expenditure but this section shall not apply to expenditure in connection with any building works plant appliances or things for the purposes of any undertaking of the Corporation from which revenue is derived or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

Renewal and
repairs fund.

(2) The Corporation may from time to time pay into the renewal and repairs fund such sums as they think fit from the revenue of the general rate fund (including a sum equal to the interest earned on the renewal and repairs fund and any income arising from the application of that fund to the purposes authorised) but the maximum amount standing to the credit of the renewal and repairs fund shall not except with the approval of the Minister at any time exceed fifty thousand pounds.

(3) (a) Pending the application of the moneys in the renewal and repairs fund to the purposes authorised by this section such

PART IX
—cont.

moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the renewal and repairs fund in the manner provided by this subsection and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) Section 16 (Renewal and repairs fund) of the Barnsley Corporation Act 1937 is hereby repealed.

Art fund.

15 & 16 Geo. 5. c. 90. **75.**—(1) The Corporation may (if they think fit) establish a fund to be called “the art fund” to provide for the purchasing of any pictures sculptures or other objects of artistic scientific or historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection of the Corporation and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the equivalent of one-third of the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925:

Provided that when the art fund shall amount to the sum of ten thousand pounds the Corporation shall discontinue such annual payments but if the said fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payments until the said fund be restored to the sum of ten thousand pounds.

(2) (a) Pending the application of the art fund to the purposes authorised in the foregoing subsection the moneys in the said fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the art fund.

Loans for
erection &c. of
buildings.

76.—(1) The Corporation may advance money to the purchaser or lessee of any land acquired from or leased by the Corporation for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon:

Provided that any such advance shall not exceed in case of a building being a dwelling-house nine-tenths or in the case of any other building three-quarters of the amount which in the opinion of the Corporation will be the market value of the

interest of the borrower in the land after the purpose of the loan has been effected.

PART IX
—cont.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the Corporation by a mortgage of the land and building in respect of which the advance is to be made or of the lessee's interest therein and the instrument securing the advance—

(a) shall fix the rate of interest to be paid being a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935;

(b) shall fix the period within which the advance is to be repaid being a period not exceeding thirty years from the date of the advance;

(c) shall require the repayment to be made either by equal instalments of principal or by an annuity of principal and interest combined;

(d) shall fix the intervals at which all payments on account of principal and interest are to be made being intervals not exceeding half a year;

(e) shall authorise the borrower at any of the usual quarter days after one month's notice and on paying all sums due on account of interest to repay the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the said instrument or as the Corporation may be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid);

(f) shall where the repayment is to be made by an annuity of principal and interest combined determine by reference to a table annexed to the instrument the amount to be taken as outstanding at any time and the amount by which the annuity will be reduced when a part of the advance has been paid off;

(g) shall require the borrower to keep the building in respect of which the advance is made insured against fire to the satisfaction of the Corporation and to produce to the Corporation when required the receipts for the premiums paid in respect of the insurance;

(h) shall require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

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—cont.

(4) The borrower may with the permission of the Corporation (which shall not be reasonably withheld) at any time transfer his interest in the land and building in respect of which the advance was made but any such transfer shall be made subject to the terms of the instrument securing the advance.

(5) In this section the expression "lessee" includes a person to whom the Corporation have agreed to grant a lease and the expression "lease" shall be construed accordingly.

Payments due
to deceased
employees.

77.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance pension gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Corporation may think reasonable then at the expiration of that time the Corporation may pay such sum to the person or persons entitled to the residuary estate of the employee by virtue of the provisions of paragraphs (i) to (vi) of section 46 (1) of the Administration of Estates Act 1925 and section 9 of the Legitimacy Act 1926 to the intent that such sum shall be applied in due course of administration:

15 & 16 Geo. 5.
c. 23.
16 & 17 Geo. 5.
c. 60.

Provided that—

(a) the Corporation may (notwithstanding the receipt of a notice under proviso (b) of this subsection) if they think fit pay out of such sum the funeral expenses of the deceased employee or so much thereof as the Corporation consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

9 & 10 Geo. 6.
c. 67.

(b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of section 46 (1) (vi) of the Administration of Estates Act 1925 are applicable) pay such sum or the balance thereof in their hands to any person other than to the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) Before paying any sum in accordance with the provisions of subsection (1) of this section (except under proviso (a) thereof)

to any person other than the personal representative of the deceased employee the Corporation shall require either—

PART IX
—cont.

- (a) a statutory declaration or (when payment is made to the Crown or to the Duchy of Lancaster or to the Duchy of Cornwall) a statement by the person or one of the persons to whom the Corporation may pay and propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed four hundred pounds; or
- (b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

(3) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in the exercise of their power under this section.

78. If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate which may be due from him to the Corporation and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim and to detain them until the complaint is determined upon the return of the summons.

Recovery of
rate &c. from
persons
removing.

79.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

Recovery of
rates from
certain owners

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression "owner" in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

PART IX
—cont.

(3) This section shall not apply to any hereditaments to which subsection (1) of section 11 (Rating of and collection of rates by owners) of the Rating and Valuation Act 1925 applies by virtue of a resolution of the council.

Dividend
warrants
by post.

80.—(1) The Corporation may give notice to any person being registered as a holder of any authorised security (other than stock) that they intend to send interest or dividends to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Corporation of such objection the Corporation may from time to time send orders for the payment of interest or dividend warrants by post to the address of such person appearing in the register:

Provided that if such person gives notice to the Corporation that he desires such orders or warrants to be sent to another person at a given address the Corporation may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Corporation by any other of them.

(3) The posting by the Corporation of an order for the payment of interest or a dividend warrant in pursuance of this section shall as respects the liability of the Corporation be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

45 & 46 Vict.
c. 61.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Corporation shall in relation thereto be deemed a banker within the meaning of the Bills of Exchange Act 1882.

Closing of
registers.

81.—(1) The Corporation may close any transfer books or the registers of transfers of authorised securities (other than stock) during the whole of the period of thirty days or any shorter consecutive period next before the date on which interest on the authorised securities to which such transfer book or register relates is payable:

(2) The persons who on the date on which the transfer book or register is closed are entered therein as holders of any security of the class to which such transfer book or register relates shall be entitled to the interest next payable thereon.

PART X
MISCELLANEOUS

82. As from the commencement of this section—

Registration of
theatrical
agencies.

(1) Every person who shall carry on for the purpose of private gain the trade or business of keeper of a concert theatrical or music hall employment agency shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Corporation for the purpose and prior to such registration shall pay to the Corporation the sum of two guineas and shall renew such registration annually and prior to every such renewal shall pay to the Corporation the sum of one guinea:

(2) The Corporation may make byelaws prescribing the books to be kept and the entries to be made therein and any other matter which the Corporation may deem necessary for the prevention of fraud or immorality in the conduct of such trade or business and for regulating any premises used for the purposes of or in connection with such trade or business:

(3) The person registered shall keep a copy of the byelaws made by the Corporation under this section hung up in a conspicuous place in the registered premises:

(4) (a) Any officer of the Corporation or other person duly authorised in writing in that behalf by the Corporation and if so required exhibiting his authority shall at all reasonable times be afforded by the person registered full and free power of entry into the registered premises for the purpose of inspecting the registered premises and the books required to be kept by such person and shall also on obtaining an order from a court of summary jurisdiction in this behalf at all reasonable times be afforded full and free power of entry into any premises where there is reasonable ground for suspecting that an offence under this section has been committed for the purpose of inspecting any such premises and the books and records therein;

(b) Every person who refuses to permit any officer of the Corporation or other person duly authorised as aforesaid to enter or inspect any premises which such officer or person is authorised to enter and inspect or obstructs any such officer or person in the execution of his duty under the provisions of this section or of any byelaw made thereunder shall be liable to a penalty not exceeding five pounds:

PART X
—cont.

- (5) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on have not been registered in accordance with subsection (1) of this section or whose registration has not been renewed in accordance therewith or has been suspended or cancelled as hereinafter provided or acting in contravention of any of the provisions of this section or of any byelaw made thereunder shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the court may (in lieu of or in addition to imposing a penalty) order the suspension or cancellation of the registration :
- (6) In this section “concert theatrical or music hall employment agency” means any agency or registry for or in connection with the employment either in this country or elsewhere of persons as actors acrobats singers dancers musicians or in other similar capacities at theatres music halls or other place of public entertainment or in connection with cinema film production or exhibition and any person who offers to teach or train or afford facilities for teaching or training those desirous of employment either in this country or elsewhere as actors acrobats singers dancers musicians or in other similar capacities as aforesaid and who directly or indirectly offers or holds out a prospect of such employment as an inducement to those who desire to be so taught or trained shall be deemed to be carrying on a concert theatrical or music hall employment agency within the meaning of this Act :
- (7) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Secretary of State.

Places used for
boxing or
wrestling
entertainments
to be licensed.
53 & 54 Vict.
c. 59.

83.—(1) As from the commencement of this section the provisions of Part IV of the Public Health Acts Amendment Act 1890 shall in its application to the borough extend to any place kept or used for any boxing or wrestling entertainment as though such entertainment were of the like kind with public dancing and music.

(2) For the purposes of this section “boxing or wrestling entertainment” means any public contest or display of boxing or wrestling except such as may be provided or given—

- (a) by travelling showmen at pleasure fairs ;
- (b) in premises licensed under the Theatres Act 1843 if and so long as the conditions attached to the licence under the said Act are complied with as though such contest or display were a stage play ;

6 & 7 Vict.
c. 68.

- (c) by bona fide associations clubs hospitals or societies which are not carried on for profit;
- (d) by members of the Boy Scouts Association or of any organisation formed by the Boy Scouts Association in pursuance of their charter; or
- (e) by any school.

84.—(1) The Corporation may from time to time make Byelaws as to pleasure fairs.
byelaws—

- (a) for regulating the hours during which pleasure fairs may be open to the public;
- (b) for securing safe and adequate means of ingress to and egress from any pleasure fair;
- (c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section—

the expression “pleasure fair” means any place of entertainment for admission to which or for the use of the contrivances in which a charge is made and where the entertainment comprises any or all of the following whether or not in combination with any other forms of entertainment that is to say any circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway cocoanut shy hoop-la shooting gallery swings dodgems or other mechanical driving or riding devices automatic or other machines intended for entertainment or amusement and anything similar to any of the foregoing:

Provided that the expression “pleasure fair” does not include any place where—

(a) any fair is held by statute royal charter royal licence letters patent or ancient custom;

(b) the entertainment is not run for profit and is not carried on for more than seven consecutive days;

(c) the entertainment although run for profit is for a charitable purpose and the profits are devoted to that purpose.

(3) Before making any byelaws under this section the Corporation shall give to the Amusement Caterers' Association the Association of Amusement Park Proprietors of Great Britain and the Showmen's Guild of Great Britain not less than one month's notice of the intention of the Corporation to make such byelaws and such notice shall be accompanied by a copy of the

PART X
—cont.

draft byelaws and the Corporation shall confer with the said associations and guild thereon before they submit them to the Secretary of State for confirmation.

(4) For the purposes of section 250 of the Act of 1933 the confirming authority as respects byelaws made under this section shall be the Secretary of State.

Restriction on
erection of
stands &c.

85.—(1) Every person intending to erect any stand or structure for affording sitting or standing accommodation for not less than twenty persons shall not less than fourteen days prior to the commencement of the erection thereof submit to the Corporation a plan and section thereof and shall comply with such conditions as the Corporation may prescribe for securing the stability of such stand or structure and protection against fire and for securing the safety of persons to be accommodated thereon.

(2) Any person aggrieved by any conditions prescribed by the Corporation under subsection (1) of this section may appeal in accordance with section 97 (As to appeals) of this Act:

Provided that pending the determination of such appeal twenty or more persons shall not be admitted to such stand or structure unless the conditions prescribed by the Corporation have been complied with.

(3) Any person acting in contravention of this section or offending against any such condition shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding forty shillings.

(4) The provisions of this section shall not apply to any stand or structure erected by a person who is a proprietor of a travelling circus roundabout or amusement fair for the purposes of his business as such.

(5) Nothing in this section shall render lawful the erection of any stand or structure which would not have been lawful apart from the provisions of this section.

Power to make
regulations as
to traffic on
carnival &c.
days.

10 & 11 Vict.
c. 89.

86. The powers conferred by section 21 (Power to make orders for preventing obstructions in the streets during public processions &c.) of the Town Police Clauses Act 1847 shall within the borough extend to enable the Corporation at all times of ceremonies public processions rejoicings fairs exhibitions carnivals races sports illuminations or similar occasions to direct the passage and stoppage of vehicles along or in particular streets to direct particular routes to be taken for particular descriptions of traffic and to prohibit the passage or stoppage of particular vehicles through or in certain streets at certain hours. The Corporation shall not exercise the powers of this section in such manner as to obstruct or interfere with the access to or exit from any station wharf or depot of any railway canal or inland navigation undertakers.

87.—(1) Any person intending to organise or form a public or ceremonial procession or a circus procession or a procession of wild animals through the streets of the borough (other than a public or ceremonial procession which is regularly held through such streets) shall give notice thereof and of the route proposed to be taken and of the time at which it will take place to the Corporation by leaving such notice at the office of the chief constable thirty-six hours at least (exclusive of Sundays) previous to the time fixed for such procession to pass through the streets.

Notice of processions to be given.

(2) If any such procession passes through the streets of the borough without such notice having been previously given or otherwise than in accordance with such notice any person organising or conducting such procession shall be liable to a penalty not exceeding five pounds.

(3) Section 82 (Notice of processions to be given) of the Barnsley Corporation Act 1923 is hereby repealed.

88.—(1) The Corporation may erect or fix and maintain police telephone call boxes police telephone pillars and shelters or boxes for the use of police constables in such positions in any street park or public place within the borough as they think fit.

Police telephone call boxes and shelters.

Provided that nothing in this section shall authorise the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

32 & 33 Vict. c. 73.

(2) The Corporation shall not under the powers of this section erect fix or maintain any police telephone call box or pillar shelter or box—

(i) so as to cause interference with or to render less convenient the access to or exit from any station wharf or depot of any railway canal or inland navigation undertakers;

(ii) in any street or road belonging to, or repairable by, any railway canal or inland navigation undertakers; or

(iii) in or upon any bridge carrying a street or road over any railway canal or inland navigation or the approaches thereto;

except in each case with the consent in writing of the undertakers concerned which consent shall not be unreasonably withheld and any question as to whether any such consent is unreasonably withheld shall be referred to and determined by the Minister of Transport.

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—cont.

(3) The Corporation shall not in pursuance of this section erect fix or maintain any police telephone call box or pillar shelter or box opposite to or in the immediate vicinity of any entrance to or exit from any premises used as a cinematograph theatre.

Interference
with telephone
call boxes &c.

89.—(1) Any person who shall wilfully or negligently obstruct or interfere with the convenient access to any police telephone call box police telephone pillar or police shelter or box or who shall remove or efface any plate or mark indicating the position of such call box or pillar shelter or box or any fire hydrant shall be liable to a penalty not exceeding five pounds and the Corporation may recover the expenses of replacement and making good from such person.

(2) Any person who shall knowingly and improperly use or cause to be used by means of any false or malicious statement message or otherwise any police telephone call box or pillar or (for the purposes of requiring the services of the police or an ambulance) any telephone call box of the Post Office telephone service shall for every such offence be liable to a penalty not exceeding five pounds.

Prohibition on
solicitation of
school children
to sell or
exchange
articles &c. at
schools.

90.—(1) While any child is entering or leaving any school provided or maintained by the Corporation as the local education authority or is entering or leaving any yard or playground appurtenant to any such school or is in any such yard or playground no person shall solicit such child—

(a) to sell to such person any article or thing; or

(b) to exchange with such person any article or thing for any other article or thing.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds.

7 & 8 Geo. 6.
c. 31.

(3) In this section "child" has the meaning assigned to it by section 114 of the Education Act 1944.

As to
maintenance of
cemeteries &c.

91.—(1) The Corporation may in connection with the maintenance of any cemetery provided by them under the Public Health Acts or any burial ground provided by them under the Burial Acts 1852 to 1906 or any closed or disused burial ground maintainable by the Corporation alter repair straighten or maintain any tombstone or monument and put in order and maintain any grave space therein and where a grave space has been allowed to fall into a neglected condition remove the kerbs surrounding the grave space.

(2) The Corporation shall cause to be made a record of any kerb surrounding a grave space removed under the powers of this section showing the particulars respecting each kerb so

removed as a separate entry and a copy of such record shall be deposited at the General Register Office Somerset House London with the miscellaneous records in the custody of the Registrar-General.

PART. X
—cont.

(3) Before the Corporation exercise any of the powers of this section they shall publish once at least in each of two successive weeks in one or more newspapers circulating in the borough notice of their intention so to do together with a statement of the works to be carried out and such notice shall also state that any person desiring to object to the carrying out of any such works shall give notice in writing to the Corporation of his objection and the grounds thereof within the date stated in the notice (which date shall not be earlier than ten days after the last publication of the notice) If any objection shall be so given to the Corporation and not withdrawn the works to which the objection relates shall not be carried out without the consent of the Secretary of State.

92. The Corporation may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sums as they may from time to time think fit not exceeding in any one year the sum of two hundred pounds. As to prizes for garden competitions.

93. Every person who negligently breaks throws down or otherwise damages any public lamp or lamp-post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or any other property of the Corporation shall make compensation to the Corporation for the damage done and such compensation to an amount not exceeding twenty pounds may (without prejudice to any other right or remedy of the Corporation) be recovered summarily as a civil debt. Compensation for injuring lamps &c.

94.—(1) Where a tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose is kept on any premises the occupier of the premises shall take all such steps as may be reasonably necessary to prevent danger from such vessel. Derelict petrol tanks.

(2) Any officer of the Corporation duly authorised by them may on producing a copy of his authority purporting to be signed by the town clerk require the occupier of the premises on which is situated any tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose to show him such vessel and permit him to ascertain whether steps have been taken to comply with the provisions of this section.

PART X
—cont.

(3) Any person failing to comply after due warning with the provisions of subsection (1) of this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

18 & 19 Geo. 5. c. 32. (4) In this section the expression "petroleum spirit" has the meaning assigned to it by the Petroleum (Consolidation) Act 1928.

PART XI

GENERAL

Commence-
ment of
certain
provisions of
this Act.

95.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the Corporation of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation which shall not be less than one month after the date of publication of the advertisement or if the advertisement is published in more than one newspaper on different dates after the date of the first publication of the advertisement:

Provided that if the provision is one which requires the licensing or registration of any person or premises the application for the licence or registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the following sections of this Act:—

Section 20 (Demolition of buildings);

Section 36 (Parents &c. to notify certain diseases);

Section 37 (Restrictions on attendance at schools and places of assembly);

Section 44 (Registration of hairdressers and barbers and their premises);

Section 47 (Registration of hawkers of food and premises);

Section 60 (Registration of weighing machines);

Section 61 (Registration of keepers of weighing machines);

Section 82 (Registration of theatrical agencies);

Section 83 (Places used for boxing or wrestling entertainments to be licensed).

(4) As respects any of the said provisions which require the licensing or registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision came into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) had made application in accordance with the provisions of this Act for such licence or registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 97 (As to appeals) of this Act.

96. Section 298 (Restriction on right to prosecute) of the Restriction Act of 1936 shall apply to offences created by or under Part IV (Streets buildings sewers and drains) Part V (Infectious disease and sanitary matters) and Part VI (Food) of this Act as if they were offences created by or under that Act. on right to prosecute.

97.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part IV (Streets buildings sewers and drains) Part V (Infectious disease and sanitary matters) Part VI (Food) or Part VIII (Weights and measures) of this Act or section 82 (Registration of theatrical agencies) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction. As to appeals.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before the Corporation with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act

PART XI
—cont.

is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken;
- (b) the Corporation shall not execute such work or take such action; and
- (c) subject to the proviso to subsection (2) of section 85 of this Act any such person may carry on such business and use such premises for such purpose;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

Application of
provisions of
Act of 1936.

98. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);

Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);

PART XI
—cont.

Section 292 (Power to make a charge in respect of establishment expenses);

Section 293 (Recovery of expenses &c.);

Section 294 (Limitation of liability of certain owners);

Section 295 (Power of local authority to grant charging orders);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative);

Section 329 (Saving for certain provisions of the Land Charges Act 1925);

Provided that the said sections 277 287 288 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part IV (Streets buildings sewers and drains) Part V (Infectious disease and sanitary matters) and Part VI (Food) of this Act:

Provided also that the said section 287 shall not apply to the provisions of section 40 (Entry into premises in case of disease) section 47 (Registration of hawkers of food and premises) and section 82 (Registration of theatrical agencies) and the said section 288 shall not apply to the provisions of section 82 (Registration of theatrical agencies) of this Act.

99. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration the reference shall be subject to the provisions of the Arbitration Acts 1889 to 1934 and unless other provision is made or it is otherwise agreed the arbitrator shall be appointed by the Minister.

100. The Minister of Health or the Minister of Transport may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 (Power of government departments to direct inquiries) of the Act of 1933 shall apply accordingly.

101. When any compensation costs damages or expenses are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

102. Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

PART XI
—cont.For protection
of East
Midlands Gas
Board.

103. For the protection of the East Midlands Gas Board (in this section referred to as "the board") the following provisions shall notwithstanding anything in this Act and unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

(1) In this section "apparatus" means mains pipes meters and other works and apparatus belonging to the board and "position" includes depth:

(2) (a) Whenever by virtue of section 7 (Stopping up and diversion of highways) of this Act any highway or part of a highway in over or under which any apparatus is for the time being situate is stopped up or diverted the board shall be at liberty—

(i) to remove the apparatus to and relay or replace the same in over or under the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other position as the board may reasonably determine; or

(ii) if it is reasonably necessary so to do to provide and lay or place other apparatus in over or under such substituted highway or other position in lieu of such existing apparatus;

(b) Whenever by reason of the exercise by the Corporation of the powers of the said section any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under the provisions of this section) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the board such a sum as may be agreed between the Corporation and the board or as failing such agreement may be determined by arbitration as hereinafter provided to be the value of such apparatus and such apparatus shall upon such payment become the property of the Corporation:

(3) Not less than twenty-eight days before the Corporation—

(a) pursuant to section 10 (Crossings over footways) of this Act—

(i) require the construction of a carriage-crossing across any footway in or under which any apparatus is for the time being situate; or

(ii) allow the use of any such footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle); or

(b) pursuant to section 22 (Means of access to buildings) of this Act require the provision of means of communication across any such footway ;

the Corporation shall give notice to the board and if in consequence of the construction of the carriage-crossing or means of communication across such footway or the use of such footway for the purpose aforesaid it shall be reasonably necessary to alter the position of the apparatus in or under the footway the board may and if so required by the Corporation shall alter the position of the apparatus to such other position as may be reasonable :

- (4) Nothing in section 11 (Prohibition of persons vehicles &c. on grass margins) of this Act shall affect the rights of the board with respect to apparatus in under upon over along or across any area to which that section relates :

- (5) (a) The Corporation shall so exercise the powers of section 17 (Power to lay out grass margins &c. in streets) of this Act as not to cause damage to or obstruct or render less convenient the access to any apparatus and shall so maintain every tree planted under the powers conferred by that section that the same does not injuriously affect any apparatus ;

(b) Whenever under the powers of the said section 17 the Corporation add to the footway or carriageway of any street any portion of any grass margin in over or under which any apparatus is for the time being situate the board may alter the position of the apparatus to such other position in over or under—

(i) the reduced grass margin (if any) of the street ;
or

(ii) the carriageway or footway of the street as altered ;

as may be reasonable :

- (6) Not less than twenty-eight days before the Corporation in the exercise of the powers of the said section 17 add to the carriageway of a street any portion of the footway in over or under which any apparatus is for the time being situate the Corporation shall give to the board notice of their intention so to do accompanied by a plan and section of the intended alteration and the board may if it is reasonably necessary and if so required by the Corporation shall alter the position of the apparatus to such other position in over or under the carriageway or the footway as may be reasonable :

PART XI
—cont.

- (7) The board within fourteen days after the receipt of a notice from the Corporation pursuant to subsection (3) or subsection (6) of this section shall give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of the relevant subsection and shall at the same time deliver to the Corporation a plan and section of the proposed alteration. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be reasonable:
- (8) Nothing in section 19 (As to erection of retaining walls) of this Act shall apply to any structure erected on land belonging to the board so long as such land is used primarily for the purposes of their undertaking:
- (9) The Corporation shall repay to the board the reasonable expenses incurred by them of or in connection with—
- (a) the alteration of the position of any apparatus under the provisions of subsection (3) or subsection (5) or subsection (6) of this section; or
 - (b) the removal and relaying or replacing of any apparatus or the provision and laying or placing of any new apparatus under the provisions of subsection (2) of this section;
- and the reasonable costs of and incidental to—
- (i) the cutting off of any apparatus from any other apparatus; and
 - (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection:
- (10) The Corporation shall not exercise any of the powers of the following sections of this Act:—
- Section 8 (Shelters &c. for passengers);
 - Section 9 (As to barriers &c. in streets);
 - Section 16 (Power to place fences near school entrances &c.);
 - Section 18 (Planting of trees in private streets);
 - Section 88 (Police telephone call boxes and shelters);
- so as to cause damage to or obstruct or render less convenient the access to any apparatus:

(11) Nothing in any byelaw made under section 43 (Byelaws as to tipping refuse) of this Act shall extend or apply to the tipping by the board of any dust spoil or refuse on any land which the board are for the time being authorised to use for the manufacture or storage of gas or the working up or storage of residual products and used by the board for the purposes of their undertaking:

(12) (a) Any question or dispute which may arise between the Corporation and the board under this section (other than a question or dispute as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to a single arbitrator to be agreed upon between the parties or in default of such agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party after written notice to the other and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the reference;

(b) In settling any question or dispute under this section the arbitrator shall have regard to any duties or obligations which the board may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

104. For the protection of the Yorkshire Electricity Board (in this section referred to as "the board") the following provisions shall notwithstanding anything contained in this Act and unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

(1) In this section "apparatus" means all or any electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to the board: 45 & 46 Vict. c. 56.

(2) (a) Whenever by virtue of section 7 (Stopping up and diversion of highways) of this Act any highway or part of a highway in over or under which any apparatus is for the time being laid or placed is stopped up or diverted the board shall be at liberty at their option—

(i) to remove the apparatus to and relay or replace the same in over or under the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other position as the board may reasonably determine; or

PART XI
—cont.

(ii) to provide and lay or place other apparatus in over or under such substituted highway or in such other position as aforesaid in lieu of such existing apparatus ;

(b) Whenever by reason or in consequence of the exercise by the Corporation of the powers of the said section any apparatus (other than apparatus for which new apparatus has been substituted at the expense of the Corporation under the provisions of this section) is rendered derelict useless or unnecessary the Corporation shall forthwith pay to the board such a sum as may be agreed between the Corporation and the board or as failing agreement may be determined by arbitration as hereinafter provided to be the value of the apparatus so rendered derelict useless or unnecessary and such apparatus shall upon such payment become the property of the Corporation :

(3) Not less than twenty-eight days before the Corporation—

(a) pursuant to section 10 (Crossings over footways) of this Act—

(i) require the construction of a carriage-crossing across any footway in or under which any apparatus is for the time being situate ; or

(ii) allow the use of any such footway as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) ;
or

(b) pursuant to section 22 (Means of access to buildings) of this Act require the provision of means of communication across any such footway ;

the Corporation shall give notice to the board and if in consequence of the construction of the carriage-crossing or means of communication across such footway or the use of such footway for the purpose aforesaid it shall be reasonably necessary to alter the position of the apparatus the board may and if reasonably so required by the Corporation shall alter the position of the apparatus to such other position as may be reasonable :

(4) Nothing in section 11 (Prohibition of persons vehicles &c. on grass margins) of this Act shall affect the rights of the board with respect to apparatus in under upon over along or across any area to which that section relates :

(5) (a) The Corporation shall so exercise the powers of section 17 (Power to lay out grass margins &c. in streets) of this Act as not to cause damage to or obstruct or render less convenient the access to any apparatus and shall so plant and maintain every tree planted under the powers conferred by that section that the same does not injuriously affect any apparatus ;

(b) Whenever under the powers of the said section 17 the Corporation add to the footway or carriageway of any street any portion of any grass margin in over or under which any apparatus is for the time being situate the board may alter the position of the apparatus to such other position in over or under—

(i) the reduced grass margin (if any) of the street ;
or

(ii) the carriageway or footway of the street as altered ;

as may be reasonable :

(6) Not less than twenty-eight days before the Corporation in the exercise of the powers of the said section 17 add to the carriageway of a street any portion of the footway in over or under which any apparatus is for the time being situate the Corporation shall give to the board notice of their intention so to do accompanied by a plan and section of the intended alteration and the board may and (if reasonably so required, by the Corporation) shall alter the position of the apparatus to such other position in over or under—

(a) the carriageway or footway ; or

(b) the grass margin at the side of the street as altered ;

as may be reasonable :

(7) The board within fourteen days after the receipt of a notice from the Corporation pursuant to subsection (3) or subsection (6) of this section shall give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of the relevant subsection and shall at the same time deliver to the Corporation a plan and section of the proposed alteration. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be reasonable :

PART XI
—cont.

(8) Nothing in section 19 (As to erection of retaining walls) of this Act shall extend or apply to any land belonging to or which may hereafter be acquired by the board or to any structure erected on any such land:

(9) The Corporation shall repay to the board the reasonable expenses incurred by them of or in connection with—

(a) the alteration of the position of any apparatus under the provisions of subsection (3) or subsection (5) or subsection (6) of this section; or

(b) the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of subsection (2) of this section;

(c) the making good of any damage to any apparatus caused by or resulting from any act omission or default of the Corporation their officers servants and workmen in the exercise of the powers of this Act;

and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection:

(10) The Corporation shall not exercise any of the powers of the following sections of this Act:—

Section 8 (Shelters &c. for passengers);

Section 9 (As to barriers &c. in streets);

Section 13 (Urgent repairs of private streets);

Section 16 (Power to place fences near school entrances &c.);

Section 18 (Planting of trees in private streets);

Section 88 (Police telephone call boxes and shelters);

so as to cause damage to or obstruct or render less convenient the access to any apparatus:

(11) The Corporation shall not pursuant to section 15 (As to pavement lights) of this Act consent to the construction of any means for the admission of light or air through a pavement if such construction may cause damage to or obstruct or render less convenient the access to any apparatus:

(12) (a) Any difference which may arise between the Corporation and the board under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to a single arbitrator to be agreed upon between the parties or in default of such agreement to be appointed on the application of either party (after written notice to the other) by the President of the Institution of Civil Engineers ;

(b) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the board may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

105. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

106. Nothing in this Act affects prejudicially any estate right Crown rights. power privilege or exemption of the Crown.

107. The costs charges and expenses preliminary to and of Costs of Act. and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or general rate or out of moneys to be borrowed under the authority of this Act for that purpose.

The SCHEDULES referred to in the foregoing Act

THE FIRST SCHEDULE

CATTLE MARKET TOLLS

	s.	d.	
Stallion horses	2	0	} in respect of each animal
Other horses mules and asses	1	0	
Bulls	1	6	
Cows oxen heifers or steers	1	0	
Sheep lambs calves sucking pigs goats ...	3		
Pigs other than sucking pigs	6		
Poultry	1		
Carts	1	0	

WEIGHS

	d.
Cattle	6
Sheep pigs calves &c. every 5 or less ...	3

PUBLIC SLAUGHTER-HOUSE

SLAUGHTERING CHARGES

	During ordinary business hours		After ordinary business hours		
	s.	d.	s.	d.	
Bulls bullocks oxen cows					} for each animal
heifers or steers	5	0	6	6	
Calves	1	3	1	9	
Sheep or lambs	1	0	1	6	
Pigs (up to 20 stones)	2	0	2	6	
Pigs (over 20 stones)	2	6	3	0	

COLD AIR STORE CHARGES

	s.	d.	
Beef side		9	} per day of 24 hours or part thereof
Beef quarter		9	
Sheep		4	
Calves		4	
Pigs (small) up to 12 stones	1	3	
Pigs (large) 12 to 15 stones	2	6	
Pigs (large) side	2	0	

Offals viz:—

s. d.

1st SCH.
—cont.

Beasts heads	...	each	...	3	} per week or part thereof with a minimum charge of 6d.
Calves heads	...	"	...	3	
Sheeps heads	...	"	...	3	
Pigs heads	...	"	...	3	
Beasts livers	...	"	...	3	
Beasts hearts	...	"	...	3	
Beasts fry	...	"	...	1 0	
Beasts tails	...	"	...	3	
Sheep and pigs plucks	...	"	...	3	
Beasts skirts and kidneys	...	"	...	2	

Portions &c. by weight 4d. per stone per week.

HANGING CHARGES

Hanging charges in cooling hall for every day of 24 hours or part thereof (after the first 24 hours)—

	s.	d.
Beef side	...	9
Beef quarter	...	9
Sheep	...	4
Calves	...	4
Pigs (small) up to 12 stones	1	3
Pigs (large) 12 to 15 stones	2	6
Pigs (large) side	2	0

Offals viz:—

s. d.

Beasts heads	...	each	...	3	} per week or part thereof with a minimum charge of 6d.
Calves heads	...	"	...	3	
Sheeps heads	...	"	...	3	
Pigs heads	...	"	...	3	
Beasts livers	...	"	...	3	
Beasts hearts	...	"	...	3	
Beasts fry	...	"	...	1 0	
Beasts tails	...	"	...	3	
Sheep and pigs plucks	...	"	...	3	
Beasts skirts and kidneys	...	"	...	2	

Portions &c. by weight 4d. per stone per week.

LAIRAGE CHARGES

For the use of lairs for every 24 hours or part thereof (after the first 24 hours)—

	each
	s. d.
Bulls bullocks oxen cows heifers or steers	1 0
Calves sheep lambs or pigs	6

PASTURING CHARGES

Beasts	...	1s. 0d. per day or 5s. 0d. per week for each animal
Sheep and calves	...	6d. " " " 2s. 6d. " " " "

SECOND SCHEDULE

ALTERATIONS AND EXTENSIONS TO BE DEEMED TO BE THE ERECTION
OF A NEW BUILDING

1. The re-erection wholly or partly of any building of which an outer wall is pulled down otherwise than in consequence of fire or other accident to such a distance that the part of the wall remaining (if any) is less than half the previous height of the building the height being measured from the ground level to the highest point of the building.

2. The conversion into a dwelling-house of any building not originally constructed for human habitation.

3. The conversion of any premises into a factory workshop or place of public resort.

4. Any extension by reason whereof the area occupied by the site of the building will with any previous extension made since the date in question be increased by an area equal to more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date.

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